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TENTATIVE ORDER

Plaintiffs Benjamin Berenji and Matthew Berenji's Motion to Compel Depositions of Apex Security Group, Inc.'s Employees and Production of Documents is GRANTED. The parties shall meet and confer regarding the depositions of Patrick Gomez, Nathan Medina, Shawn Parker, Alan Ayers, S. Marroquin, and R. Payne to occur within sixty (60) days of entry of this order.

Plaintiffs Benjamin Berenji and Matthew Berenji's Request for Monetary Sanctions is DENIED.

Defendants Apex Security Group, Inc., Stadco LA, LLC, and Los Angeles Rams, LLC's Motion for Protective Order and to Quash Plaintiffs' Deposition Notices is DENIED.

The Court finds that Plaintiffs are entitled to take the depositions of Patrick Gomez, Nathan Medina, Shawn Parker, Alan Ayers, S. Marroquin, and R. Payne, all of whom were identified by Defendant as its employees who were witnesses to the subject incident. (Mot., Gage Decl. ¶ 1.) Plaintiffs provide evidence that they have noticed these depositions, and certificates of nonappearance has been taken for two deponents to date. (Mot., Gage Decl. ¶¶ 19-20.) Defendant opposes this motion on the ground that these depositions should not be taken because Plaintiffs have withheld key videos of the subject incident, but the Court ruled on May 6, 2026 that there was no basis to compel anything beyond what has already been produced. Accordingly, Plaintiffs Benjamin Berenji and Matthew Berenji's Motion to Compel Depositions of Apex Security Group, Inc.'s Employees and Production of Documents is GRANTED. The parties shall meet and confer regarding the depositions of Patrick Gomez, Nathan Medina, Shawn Parker, Alan Ayers, S. Marroquin, and R. Payne to occur within sixty (60) days of entry of this order. Defendants Apex Security Group, Inc., Stadco LA, LLC, and Los Angeles Rams, LLC's Motion for Protective Order and to Quash Plaintiffs' Deposition Notices is DENIED. The Court notes that Defendants' reply to the motion for protective order focuses on new issues, specifically unavailability and asking that Plaintiffs agree to schedule the depositions for a date after a new cross-defendant has either appeared or a default has been entered. The Court trusts that the parties will meaningfully meet and confer about a proper date for deposition, and should the parties be unable to do so, Defendants may return to this Court with a new motion for protective order, if proper.

The Court opts not to impose monetary sanctions here, as the testimony regarding the video evidence may have caused Defendant and defense counsel to conclude that a different video existed, and the opposition to this motion was filed before the Court decided and denied Defendants Apex Security Group, Inc., Stadco LA, LLC, and Los Angeles Rams, LLC's Motion to Compel Plaintiff Benjamin Berenji to Comply. Thus, Plaintiffs Benjamin Berenji and Matthew Berenji's Request for Monetary Sanctions is DENIED. However, the Court advises the parties to continue attempting to resolve discovery disputes informally without motion practice, as the Court may impose monetary sanctions as to other motions if proper.